

Parliament assembled, and by the authority of the same,
as follows:—

1. The restrictions contained in section four of the Greenwich Hospital Act, 1872 (which empowers the Admiralty to provide for the education and maintenance of daughters of seamen and marines), with respect to the amount that may be expended under that section on the education and maintenance of any girl, shall cease to have effect, and accordingly the words in that section from “(2) The amount expended” to the end of the section shall be repealed.

Amendment
of s. 4 of
35 & 36 Vict.
c. 67.

2. This Act may be cited as the Greenwich Hospital Act, 1921, and the Greenwich Hospital Acts, 1865 to 1898, and this Act may be cited together as the Greenwich Hospital Acts, 1865 to 1921.

Short title
and con-
struction.

CHAPTER 42.

An Act to amend the law relating to the sale and supply of intoxicating liquor, and for purposes in connection therewith. [17th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

CONDITIONS OF SALE, &C., OF INTOXICATING LIQUOR.

1.—(1) The hours during which intoxicating liquor may be sold or supplied on week days in any licensed premises or club, for consumption either on or off the premises, shall be as follows, that is to say: eight hours, beginning not earlier than eleven in the morning and ending not later than ten at night, with a break of at least two hours after twelve (noon):

Permitted
hours on
week days.

Provided that—

(a) in the application of this provision to the metropolis “nine” shall be substituted for

“eight,” and “eleven at night” shall be substituted for “ten at night”; and

- (b) the licensing justices for any licensing district outside the metropolis may by order, if satisfied that the special requirements of the district render it desirable, make, as respects their district, either or both of the following directions—

(i) that this provision shall have effect as though “eight and a half” were substituted for “eight” and “half-past ten at night” were substituted for “ten at night”; and

(ii) that this provision shall have effect as though some hour specified in the order earlier than eleven, but not earlier than nine, in the morning were substituted for “eleven in the morning.”

(2) Subject to the foregoing provisions, the permitted hours on week days shall be such as may be fixed, in the case of licensed premises by order of the licensing justices of the licensing district, and in the case of a club in accordance with the rules of the club:

Provided that, pending any decision under this subsection, the permitted hours on week days shall be—

- (a) in the metropolis, the hours between half-past eleven in the morning and three in the afternoon, and between half-past five in the afternoon and eleven at night; and
- (b) elsewhere, the hours between half-past eleven in the morning and three in the afternoon, and between half-past five in the afternoon and ten at night.

Permitted
hours on
Sundays.

2.—(1) The hours during which intoxicating liquor may be sold or supplied on Sundays, Christmas Day and Good Friday in any licensed premises or club, for consumption either on or off the premises, shall be as follows, that is to say, five hours, of which not more than two shall be between twelve (noon) and three in the afternoon, and not more than three between six and ten in the evening:

Provided that in Wales and Monmouthshire there shall be no permitted hours for licensed premises on Sundays, or on Christmas Day when it falls on a Sunday.

(2) Subject to the foregoing provisions, the permitted hours on Sundays shall be such as may be fixed, in the case of licensed premises by order of the licensing justices of the licensing district, and in the case of a club in accordance with the rules of the club :

Provided that, pending any decision under this subsection, the permitted hours on Sundays, Christmas Day and Good Friday, shall be the hours between half-past twelve and half-past two in the afternoon, and the hours between seven and ten in the evening.

3.—(1) The provisions of this Act as to permitted hours on week-days shall, as respects licensed premises or clubs to which this section applies, have effect, if the holder of the licence or the committee of the club so elects, as though one hour were added at the end of the permitted hours in the evening :

Special provision as to extension of permitted hours in the evening in certain premises.

Provided that any intoxicating liquor sold or supplied during that hour shall be sold or supplied only for consumption at a meal supplied at the same time in such portion of the premises as is usually set apart for the service of meals, and no person shall consume or be permitted to consume any intoxicating liquor on the premises during that hour except at such meal, and any drinking bar in the said premises shall be closed during that hour.

(2) This section applies to any licensed premises or clubs if and so long as the licensing justices are satisfied that they are structurally adapted and bonâ fide used or intended to be used for the purpose of habitually providing, for the accommodation of persons frequenting the premises, substantial refreshment, to which the sale and supply of intoxicating liquor is ancillary.

(3) The holder of the licence, or the secretary of the club, shall give not less than fourteen days' previous notice in writing to the superintendent of the police of the district wherein the premises are situate of the date on which he intends to begin to avail himself of the provisions of this section; and on and after that date shall affix and keep permanently affixed in some conspicuous place in the premises a notice to the effect that the provisions of this section apply to the premises; and the said provisions shall apply accordingly for the period of the current licensing year, and shall continue to apply unless

the holder of the licence or secretary gives not less than fourteen days' notice in writing before the expiration of any licensing year to the superintendent of the police aforesaid that he intends to cease to avail himself of the provisions of this section, in which case the said provisions shall cease to apply at the end of that year.

Effect of
restricted
hours.

4. Subject to the provisions of this Part of this Act, no person shall, except during the permitted hours—

- (a) either by himself, or by any servant or agent, sell or supply to any person in any licensed premises or club any intoxicating liquor to be consumed either on or off the premises; or
- (b) consume in or take from any such premises or club any intoxicating liquor.

Exemptions
and saving
provisions.

5. Nothing in the foregoing provisions of this Part of this Act shall be deemed to prohibit or restrict—

- (a) the sale or supply to, or consumption by, any person of intoxicating liquor in any licensed premises or club where he is residing; or
- (b) the ordering of intoxicating liquor to be consumed off the premises, or the despatch by the vendor of liquor so ordered; or
- (c) the supply of intoxicating liquor for consumption on licensed premises to any private friends of the holder of the licence bona fide entertained by him at his own expense, or the consumption of intoxicating liquor by persons so supplied; or
- (d) the consumption of intoxicating liquor with a meal by any person in any licensed premises or club at any time within half an hour after the conclusion of the permitted hours, provided that the liquor was supplied during permitted hours and served at the same time as the meal and for consumption at the meal; or
- (e) the sale of intoxicating liquor to a trader for the purposes of his trade, or to a club for the purposes of the club; or
- (f) the sale or supply of intoxicating liquor to or in any canteen where the sale of intoxicating liquor is carried on under the authority of a Secretary of State or the Admiralty, or to any authorised mess of officers or non-commissioned officers of His Majesty's naval, military or air forces.

6.—(1) The foregoing provisions of this Act shall have effect in lieu of section fifty-four of, and the Sixth Schedule to, the Licensing (Consolidation) Act, 1910, but (subject as hereinafter provided in this Act), all the other provisions of that Act with respect to closing hours shall continue in force.

Application and adaptation of Licensing Act.
10 Edw. 7.
& 1 Geo. 5.
c. 24.

(2) The provisions of the Licensing (Consolidation) Act, 1910, specified in Part I. of the First Schedule to this Act shall be repealed, and the provisions of that Act specified in Part II. of that Schedule shall have effect subject to the modifications provided for in that Part of that Schedule.

7.—(1) No person shall either by himself or by any servant or agent—

Conditions as to distribution.

- (a) sell, supply, distribute, or deliver, or induce any person to sell, supply, distribute or deliver any intoxicating liquor from any van, barrow, basket or other vehicle or receptacle, unless before the liquor is despatched it has been ordered and the quantity, description and price thereof, together with the name and address of the person to whom it is to be supplied, has been entered in a delivery book or invoice, which shall be carried by the person delivering the liquor, and in a day book which shall be kept on the premises from which the liquor is despatched; or
- (b) carry or convey in any van, barrow, basket or other vehicle or receptacle, while in use for the distribution or delivery of intoxicating liquor, any such liquor not entered in such delivery book or invoice and day book; or
- (c) distribute or deliver any intoxicating liquor at any address not specified in such delivery book or invoice and day book; or
- (d) refuse to allow any constable to examine such van, barrow, basket or other vehicle or receptacle, or such delivery book or invoice :

Provided that the holder of a licence shall not be liable to any penalty under this section in respect of an offence committed by his servant or agent if he proves that such offence was committed without his knowledge or consent.

(2) Nothing in this section shall be deemed to prohibit or restrict the sale, supply, distribution, or delivery of intoxicating liquor to a trader for the purposes of his trade, or to a club for the purposes of the club.

Restriction
on credit for
on-sales.

8.—(1) No person shall—

- (a) either by himself or by any servant or agent sell or supply in any licensed premises or club any intoxicating liquor to be consumed on the premises; or
- (b) consume any intoxicating liquor in such premises or club;

unless it is paid for before or at the time when it is sold or supplied:

Provided always that, if the liquor is sold or supplied for consumption with a meal supplied at the same time and is consumed with such meal, this provision shall not be deemed to be contravened if the price of the liquor is paid together with the price of such meal.

(2) Nothing in this section shall be deemed to prohibit or restrict the sale or supply of intoxicating liquor to or in any canteen where the sale of intoxicating liquor is carried on under the authority of a Secretary of State or the Admiralty or to any authorised mess of officers or non-commissioned officers of His Majesty's naval, military or air forces.

Long pull
prohibited.

9. No person shall, either by himself or by any servant or agent in any licensed premises or club, sell or supply to any person, as the measure of intoxicating liquor for which he asks, an amount exceeding that measure.

Strength of
spirits.

10. In determining whether an offence has been committed under the enactments relating to the sale of food and drugs by selling to the prejudice of the purchaser whisky, brandy, rum or gin not adulterated otherwise than by any admixture of water, it shall be a good defence to prove that such admixture has not reduced the spirit more than thirty-five degrees under proof, and section six of the Sale of Food and Drugs Act, 1879, is hereby repealed.

42 & 43 Vict.
c. 30.

11. If, under the laws relating to the excise for the time being in force, any liquor, being liquor to which this section applies, may be sold, whether wholesale or by retail, without an excise licence, that liquor shall not be deemed to be beer or an intoxicating liquor within the meaning of the Licensing (Consolidation) Act, 1910, or to be beer or an exciseable liquor within the meaning of the Licensing (Scotland) Act, 1903.

Certain liquor not to be treated as an intoxicating liquor if excise licence not required for its sale.
3 Edw. 7.
c. 25.

The liquor to which this section applies is any liquor which, whether made on the licensed premises of a brewer of beer for sale or elsewhere, is found, on analysis of a sample thereof at any time, to be of an original gravity not exceeding one thousand and sixteen degrees and to contain not more than two per cent. of proof spirit.

12.—(1) The powers of the licensing justices under this Part of this Act may be exercised by them, in accordance with such procedure as may be prescribed by rules made by the Secretary of State, at their general annual licensing meeting, or at any transfer sessions held before the first general annual licensing meeting held after the passing of this Act.

Supplementary provisions as to orders of licensing justices.

(2) Subject to the provisions of this Act, and of the Licensing (Consolidation) Act, 1910, an order of licensing justices under this Part of this Act—

- (a) shall apply to all licensed premises and, if applicable to clubs, to all clubs in their district; and
- (b) may be varied by a subsequent order; and
- (c) shall be published in such manner as the Secretary of State may prescribe.

(3) A document purporting to be issued by licensing justices under this Part of this Act shall be evidence of the contents thereof.

13. The rules of every club contained in the register required to be kept under section ninety-two of the Licensing (Consolidation) Act, 1910, shall include a statement of the permitted hours applicable to that club.

Statement to be included in club rules.

14. If any person contravenes or fails to comply with any provision of this Part of this Act, he shall be guilty of an offence against this Act, and any person guilty of an offence against this Act shall be liable on summary conviction to a fine not exceeding thirty pounds.

Penalties.

PART II.

WINDING-UP OF CENTRAL CONTROL BOARD (LIQUOR TRAFFIC).

Repeal of
war pro-
visions and
abolition of
Central Con-
trol Board
(Liquor
Traffic).
4 & 5 Geo. 5.
c. 77.
5 & 6 Geo. 5.
c. 42.

15.—(1) The Intoxicating Liquor (Temporary Restriction) Act, 1914, and the Defence of the Realm (Amendment) (No. 3) Act, 1915, are hereby repealed, and (subject as hereinafter provided) any regulations or orders made thereunder shall cease to have effect, and the Central Control Board (Liquor Traffic) (hereinafter referred to as the Board) is hereby abolished.

(2) Any property (whether real or personal) vested at the time of the commencement of this Part of this Act in the Board or their trustees is hereby transferred to and vested in the Secretary of State as respects property in England, and in the Secretary for Scotland as respects property in Scotland.

(3) If the Secretary of State or the Secretary for Scotland is satisfied that any property vested in him by this Act is no longer required, he may sell or otherwise dispose of it in such manner as he may think fit.

State
management
districts.

16.—(1) Until Parliament otherwise determines, the schemes of State management of the liquor trade established by the Board under the Defence of the Realm (Liquor Control) Regulations, 1915, in the districts defined in the Second Schedule to this Act (in this Act referred to as State Management Districts) may be continued, by the Secretary of State as respects districts in England, and by the Secretary for Scotland as respects districts in Scotland. For this purpose, such of the said regulations as are contained in the extract therefrom which is set out in the Third Schedule to this Act are hereby continued in force in their application to those districts, and shall, to that extent, have effect as if enacted in this Act:

Provided that references to the Secretary of State or the Secretary for Scotland, as the case may require, shall be substituted for references to the Board, and a reference to an offence against this Act shall be substituted for the reference to a summary offence against the Defence of the Realm (Consolidation) Regulations, 1914:

Provided also that the power to acquire premises compulsorily shall apply only in the Carlisle district.

(2) The powers of the Board to carry on business shall, so far as concerns any premises in which the Board was carrying on business at the date of the passing of this Act, be transferred to the Secretary of State or the Secretary for Scotland, as the case may require, and exercisable by him accordingly.

(3) The Secretary of State and Secretary for Scotland shall appoint such persons as they think fit to act as local advisory committees for the purpose of assisting them in the management of the State Management Districts, and pending any such appointment the persons acting as local advisory committees in those districts at the date of the passing of this Act, shall be the local advisory committees.

(4) The Secretary of State and the Secretary for Scotland shall cause such accounts to be kept, in relation to the State Management Districts, as the Treasury may direct, and shall cause an annual report to be presented to Parliament as to their procedure in connection with the management of those districts.

(5) In connection with any transfer effected by this Part of this Act, the provisions set out in the Fourth Schedule to this Act shall have effect.

17. This Part of this Act shall come into operation at the expiration of two months from the passing of this Act: Commence-
ment of
Part II.

Provided that—

- (a) subject as hereinafter provided, any orders made by the Board under the Defence of the Realm (Liquor Control) Regulations, 1915, and in force at the date of the passing of this Act, shall cease to have effect as from the commencement of Part I. of this Act; and
- (b) the Defence of the Realm (Liquor Control) Regulations, 1915, shall continue in force until the expiration of the said two months whether or not the war previously terminates; and
- (c) any order made by the Board under which the sale or supply of intoxicating liquor in any licensed premises or club in any area is permitted at hours other than those applicable to licensed premises and clubs generally in that area shall continue in force until the expiration of the said period of two months; and

- (d) any certificate of the Board by virtue of which any person was, at the date of the passing of this Act, entitled to sell or supply intoxicating liquor shall remain in force until the expiration of such time as will enable an application by that person for a justices' licence to be made and dealt with.

PART III.

GENERAL.

Licensed premises to which Act applies.

18. The provisions of this Act with respect to licensed premises apply to any premises or place where intoxicating liquors are sold by retail under a licence, and apply to any premises where the Secretary of State or Secretary for Scotland carries on business as the successor of the Board as though such premises were licensed premises.

Repeal of part of s. 13 of 8 & 9 Vict. c. 109.

19. In section thirteen of the Gaming Act, 1845 (which relates to the time when billiard playing is allowed), the following words shall be repealed, that is to say, "and every person holding a victualler's licence who shall allow any person to play at such table, board, or instrument kept on the premises specified in such victualler's licence at any time when such premises are not by law allowed to be open for the sale of wine, spirits, or beer, or other fermented or distilled liquors."

Definitions.

20. For the purposes of this Act—

The expression "club" means registered club;

The expression "metropolis" means the administrative county of London, with the addition of any area which, though not within the administrative county of London, is within the four-mile radius from Charing Cross;

The expression "permitted hours" means as respects any licensed premises or club the hours on any day during which intoxicating liquor may be sold or supplied therein; and

The expression "conclusion of the permitted hours" means the end of the period in the afternoon or evening (as the case may be) during which the sale or supply of intoxicating liquor for any purpose is permitted.

21.—(1) This Act shall apply to Scotland subject to the following modifications:—

Application
to Scotland
and Ireland.

- (a) The Secretary for Scotland shall, unless the context otherwise requires, be substituted for the Secretary of State; “real” shall mean “heritable”; “personal” shall mean “movable”; “intoxicating liquor” shall mean “exciseable liquor”; “licence” and “justices’ licence” shall mean a certificate as defined in Part VII. of the Licensing (Scotland) Act, 1903; “licensing justices” shall mean “licensing court”; a reference to a licensing district shall be construed as a reference to any burgh, county, or district for which there is a separate licensing court; references to the annual general licensing meeting and to transfer sessions shall be construed respectively as references to the April and the October half-yearly meetings of a licensing court; and references to the Licensing (Scotland) Acts, 1903 to 1913, shall be substituted for references to the Licensing (Consolidation) Act, 1910;
- (b) The section of this Act whereof the marginal note is “Permitted hours on Sundays” shall not apply except as regards clubs;
- (c) The sections of this Act whereof the marginal notes are “Application and adaptation of Licensing Act”, “Statement to be included in club rules”, and “Penalties”, shall not apply;
- (d) The provisions of this Act as to the hours during which exciseable liquor may be sold, supplied or consumed in licensed premises on week days shall be substituted for the provisions of the Licensing (Scotland) Acts, 1903 to 1913, as to the hours during which such sale, supply or consumption is permitted on week days, provided that the hour which the licensing court may direct to be substituted for eleven in the morning shall be not earlier than ten; and any reference in the said Acts to the hours when such sale, supply, or consumption is lawful or unlawful, or to hours of opening or closing, shall be construed accordingly;
- (e) Subject to the provisions of sections forty and fifty-five of the Licensing (Scotland) Act, 1903, as amended by any subsequent enactment, it

shall, notwithstanding the terms of any certificate for the sale by retail of exciseable liquors in force at the passing of this Act, not be lawful for the holder thereof to sell or supply, or permit to be consumed, exciseable liquor on week days, except in accordance with the provisions of this Act as to the hours during which such sale, supply, or consumption is permitted;

- (f) If any person being the holder of a certificate for the sale by retail of exciseable liquors shall contravene or fail to comply with any of the provisions of this Act, he shall be deemed guilty of a breach of his certificate, and if any other person shall contravene or fail to comply with any of the said provisions, he shall be guilty of an offence and shall be liable to a penalty of ten pounds;
- (g) In order that any club may be eligible to be registered under the Licensing (Scotland) Acts, 1903 to 1913, the rules shall include a statement of the permitted hours applicable to the club;
- (h) The proviso to section thirty-five, and sections fifty-six and sixty-three of the Licensing (Scotland) Act, 1903, and section seven of the Temperance (Scotland) Act, 1913, are hereby repealed;
- (i) The Secretary for Scotland may by order make such adaptations in the forms contained in the Sixth Schedule to the Licensing (Scotland) Act, 1903, as may seem to him necessary to make those forms conform with the provisions of this Act.

(2) This Act shall not apply to Ireland.

3 & 4 Geo. 5.
c. 33.

Short title,
construction
and com-
mencement.

22.—(1) This Act may be cited as the Licensing Act, 1921.

(2) This Act shall be construed as one with the Licensing (Consolidation) Act, 1910, and that Act and this Act may be cited together as the Licensing Acts, 1910 and 1921.

(3) This Act as it applies to Scotland shall be construed as one with the Licensing (Scotland) Acts, 1903 to 1913, and those Acts and this Act as it so applies

may be cited together as the Licensing (Scotland) Acts, 1903 to 1921.

(4) Save as otherwise expressly provided, this Act shall come into operation at the expiration of fourteen days after the passing thereof.

SCHEDULES.

FIRST SCHEDULE.

Section 6

PART I.

PROVISIONS OF LICENSING (CONSOLIDATION) ACT, 1910, REPEALED.

Section fifty-four.

Section fifty-six.

Subsection (2) of section fifty-eight from “and the provisions of this Act” to the end of the subsection.

Section sixty-one.

Section sixty-two.

The sixth schedule.

PART II.

MODIFICATIONS OF LICENSING (CONSOLIDATION) ACT, 1910.

In sections fifty-five, fifty-seven, fifty-nine, and eighty-four, the reference to the provisions of that Act relating to general closing hours shall be deemed to be a reference to the provisions of this Act as to permitted hours.

Sections fifty-five and fifty-seven shall apply to clubs as they apply to licensed premises with the substitution of references to the secretary of the club for references to the holder of a justices' on-licence.

In section fifty-nine the reference to the sixth schedule of that Act shall be deemed to be a reference to the provisions of this Act as to permitted hours.

Section sixty-four shall have effect notwithstanding the provisions of this Act as to permitted hours.

Section 16

SECOND SCHEDULE.

STATE MANAGEMENT DISTRICTS IN ENGLAND.

1. The Carlisle district:—

The city of Carlisle, the petty sessional divisions of Cumberland Ward and Maryport, so much of the petty sessional division of Wigton as lies to the north-west of a line drawn parallel to and one-quarter of a mile south-east of the main road from Carlisle to Cockermouth, the petty sessional division of Longtown (except the parishes of Nichol Forest, Solport, Trough, Bellbank, and Bewcastle), and the parishes of Bothel and Threapland, Plumbland, Oughterside and Allerby, Gilcrux, Tallentire, Dovenby, and Broughton Moor, in the petty sessional division of Cockermouth, all in the county of Cumberland.

2. The Enfield Lock district:—

The district comprised within a circle having a radius of six hundred yards from the premises known as the Greyhound Tavern situated in Ordnance Road, Enfield Lock, in the county of Middlesex.

STATE MANAGEMENT DISTRICTS IN SCOTLAND.

1. The Cromarty Firth district:—

The burghs of Cromarty, Dingwall, and Invergordon, and the parishes of Rosskeen, Alness, Kiltearn, Dingwall, Urquhart, Resolis, Cromarty, and Fodderty (except the special water district of Strathpeffer), in the county of Ross and Cromarty.

2. The Gretna district:—

The burgh of Annan, and the parishes of Annan, Canonbie, Cummertrees, Dornock, Gretna, Half Morton, Hoddum, Kirkpatrick-Fleming and Middlebie, in the county of Dumfries.

Section 16.

THIRD SCHEDULE.

EXTRACT FROM THE DEFENCE OF THE REALM (LIQUOR CONTROL) REGULATIONS, 1915.

3. The Board may by order prohibit the sale by retail, or the supply in clubs or licensed premises, of intoxicating liquor

within the area, or any part thereof specified in the order, by any person other than the Board, and if any person contravenes or fails to comply with the order he shall, without prejudice to any other penalty, be guilty of a summary offence against the Defence of the Realm (Consolidation) Regulations, 1914 :

• Provided that the order may except from the provisions thereof any specified class or classes of premises or clubs.

5. The Board may either themselves or through any agents, establish and maintain in the area, or provide for the establishment and maintenance in the area of, refreshment rooms for the sale or supply of refreshments (including, if thought fit, the sale or supply of intoxicating liquor) to the general public, or to any particular class of persons, or to persons employed in any particular industry in the area.

6. Where the Board consider that it is necessary or expedient for the purpose of giving proper effect to the control of the liquor supply in the area, they may acquire compulsorily or by agreement, either for the period during which these regulations take effect or permanently, any licensed or other premises in the area, or any interest in any such premises :

Provided that the Board may, in lieu of acquiring any interest in such premises, take possession of the premises and any plant used for the purposes of the business carried on therein for all or any part of the period during which these regulations take effect, and use them for the sale or supply of intoxicating liquor or for the purpose of any of the other powers and duties of the Board.

9. The Board may, without any licence (whether justices' or excise, and whether for the sale of intoxicating liquor or otherwise), carry on in any premises occupied by them any business involving the sale or supply of intoxicating liquor, refreshments, or tobacco, and for that purpose shall not be subject to any of the provisions of the law relating to licensing, or to any restrictions imposed by law on persons carrying on such business.

Any person appointed by the Board to conduct any business on their behalf shall have, to such extent as they may be conferred by the Board, the same powers as the Board of carrying on business without a licence, but all such persons shall in all other respects, except in such cases and to such extent as the Board may otherwise order, be subject to the statutory provisions affecting the holders of licences, and the occupiers of premises licensed, for any business as aforesaid, in like manner as if they were the holders of the appropriate licences, and to any restrictions imposed by law on persons carrying on any such business as aforesaid.

10. The Board shall have power, on any premises in which business is carried on by them or on their behalf, to provide or

authorise the provision of such entertainment or recreation for persons frequenting the premises as the Board think fit, and where such provision is made or such authority is given no licence shall be necessary, and no restrictions imposed by law on the provision of the entertainment or recreation in question shall apply, except to such extent, if any, as the Board may direct.

Section 16.

FOURTH SCHEDULE.

PROVISIONS RELATING TO THE TRANSFER OF POWERS,
PROPERTY, &c.

1. All rights and liabilities of the Board, whether arising under any contract or otherwise, shall be enforceable by or against the new authority, and in the construction and for the purposes of any Act of Parliament, judgment, decree, order, award, deed, contract, or other document passed, delivered, executed, or made before the transfer to the new authority of any powers or duties, the name of the new authority shall be substituted for the name of the Board or of the trustees of the Board.

2. Where anything has been commenced by or under the direction of the Board, or of the trustees of the Board, before the transfer to the new authority of any powers or duties, such thing may be carried on and completed by or under the direction of the new authority.

3. Where at the time of the transfer of any powers or duties under this Act any proceedings are pending to which the Board or the trustees of the Board are a party, the new authority shall be substituted in any such proceeding for the Board or the trustees of the Board, and such proceeding shall not abate by reason of the substitution.

18 & 19 Vict.
c. 117.

4. Section two of the Ordnance Board Transfer Act, 1855, (which relates to the vesting of property in the Secretary of State for the War Department) shall apply with the necessary modifications to all property of any description transferred to and vested in or acquired by the new authority under this Act, or the regulations continued by this Act, as it applies to property transferred to, vested in, or acquired by the Secretary of State under that Act.

5. In this schedule the expression "the new authority" means the Secretary of State or the Secretary for Scotland, as the case may require.
